

STUNNER ALERT

WEB APP TERMS AND CONDITIONS – PROFESSIONAL

Welcome to STUNNER ALERT! We are STUNNER ALERT PTY LTD ABN 88 701 443 129 ('we', 'our' or 'us').

We operate only an online marketplace, booking and payment-facilitation platform known as STUNNER ALERT, through which independent Professionals can create and maintain profiles and listings, advertise Professional Services, manage availability, receive and manage Bookings, communicate with Customers and receive payments facilitated through the Platform (Platform).

These terms and conditions (Terms) govern your application to become and continued participation as a Professional on the Platform, your Account, Professional profile and listings, your access to and use of the Platform, Bookings, payments, Professional Content and the Platform Services we provide to you. You can view the most up-to-date version of these Terms on our website at [Website URL] (Website). Please read these Terms carefully before creating an Account, applying to be listed or using the Platform as a Professional.

STUNNER ALERT provides the Platform Services only. You are an independent Professional and are responsible for the Professional Services you advertise, offer and provide to Customers. Each confirmed Booking gives rise to a separate Service Contract between you and the relevant Customer for the Professional Services, and STUNNER ALERT is not a party to that Service Contract.

These Terms do not create an employment, worker, agency, partnership or joint venture relationship between you and STUNNER ALERT, and do not guarantee any minimum number, frequency or value of Bookings.

1 READING AND ACCEPTING THESE TERMS

- (a) In these Terms, capitalised words and phrases have the meanings given to them where they are defined in these Terms or as set out in the Definitions table at the end of these Terms.
- (b) Before completing your registration as a Professional, you must actively click the box or button indicating that you accept these Terms, and by doing so you agree to be bound by them. Creating or maintaining an Account as a Professional, submitting or maintaining a listing, accessing or using the Platform as a Professional, accepting or performing a Booking or receiving payment through the Platform constitutes acceptance only where these Terms were reasonably made available to you and you had reasonable notice that the relevant conduct would constitute acceptance.
- (c) These Terms form a binding contractual agreement between you, being the Professional using the Platform or the entity you represent and are acting on behalf of, and STUNNER ALERT in relation to your access to and use of the Platform as a Professional. These Terms do not make STUNNER ALERT a party to any Service Contract between you and a Customer for Professional Services.
- (d) We may update these Terms where reasonably required for legal or regulatory compliance, security, fraud prevention, technical or operational requirements, changes to the Platform or Platform Services, or other legitimate business reasons by publishing the revised Terms on the Website or otherwise making them reasonably available to you.
- (e) Any update operates prospectively and does not retrospectively alter the terms applying to a Booking already confirmed, a Service Contract already formed or any accrued rights or liabilities, except where required by law or expressly agreed. Where an update materially and adversely affects Professionals continuing to use the Platform, we will give at least 30 days' prior written notice, and you may terminate these Terms without penalty before the update takes effect. We may make an update effective immediately where reasonably necessary for legal or regulatory compliance, security, fraud prevention or another urgent legitimate reason. Your continued use of the Platform as a Professional after revised Terms take effect constitutes acceptance only where the revised Terms have been reasonably made available to you.

2 RELATIONSHIP WITH WEBSITE AND CUSTOMER TERMS

- (a) Your use of the Website may also be subject to separate website terms and conditions published on the Website (Website Terms).
- (b) These Terms govern your Account and use of the Platform as a Professional; the Website Terms apply to public and general access to and use of the Website.
- (c) If there is any inconsistency between these Terms and the Website Terms in relation to your use of the Platform as a Professional, these Terms prevail to the extent of the inconsistency. The Website Terms otherwise continue to apply to your general use of the Website.
- (d) If you separately access or use the Platform as a Customer to make a Booking for Professional Services, the Customer Terms apply to that use in your capacity as a Customer. Your use of the Platform as a Customer does not alter your obligations under these Terms in your capacity as a Professional.

3 ELIGIBILITY

- (a) By accepting these Terms, creating or maintaining an Account, applying to be listed or using the Platform as a Professional, you represent and warrant that:
 - (i) you are at least 18 years old and have the legal capacity and authority to enter into a binding agreement with STUNNER ALERT;
 - (ii) you operate your own independent business and hold and will maintain a valid Australian Business Number (ABN);
 - (iii) you are legally entitled to offer and provide each Professional Service you list through the Platform;
 - (iv) you hold and will maintain all qualifications, licences, registrations, approvals, hygiene certificates and other authorisations required by applicable law or reasonably required for the Professional Services you offer;
 - (v) you hold and will maintain, at your own cost, appropriate public liability insurance covering the Professional Services you provide, including liability for personal injury and property damage, and any other insurance required by applicable law;
 - (vi) you will provide a current Certificate of Currency for your insurance when you apply to use the Platform, on renewal of the relevant policy and otherwise on reasonable request by STUNNER ALERT;
 - (vii) you have and will maintain the equipment, tools, products, materials and other resources reasonably required to provide your Professional Services safely, lawfully and professionally;
 - (viii) you will provide any information or evidence reasonably required by STUNNER ALERT to verify your identity, business, qualifications or continuing eligibility to use the Platform, which may include government-issued photographic identification, a photograph or selfie showing you with that identification, qualifications, licences, registrations, hygiene certificates, insurance documents, business details and any relevant business website or professional social media account;
 - (ix) you will maintain a valid Stripe account or other payment account required by STUNNER ALERT that is capable of receiving payments facilitated through the Platform; and
 - (x) if you are acting on behalf of a company, partnership, organisation or other legal entity, you have authority to bind that entity to these Terms.
- (b) You must not create or maintain an Account, list or provide Professional Services through the Platform if you do not satisfy the eligibility requirements in these Terms.
- (c) You must ensure that all information and evidence you provide in connection with your identity, business and eligibility is accurate, complete, current and not misleading.
- (d) You must promptly notify STUNNER ALERT if:

Commented [A1]: Insurance Requirements

Professionals must maintain, at their own expense, appropriate public liability insurance covering the Professional Services, including liability for personal injury and property damage, and provide a current Certificate of Currency when applying, on renewal and when reasonably requested.

Onboarding and verification may also require qualifications, licences, hygiene certificates, government-issued photo identification, a photograph/selfie holding that identification, business details, relevant business website or professional social media information and payment-account information.

The drafting therefore substantively covers both public and property liability risk, with property damage expressly included within the required insurance coverage.

- (i) a qualification, licence, registration, approval, hygiene certificate, insurance policy or other authorisation required for your Professional Services expires, is suspended, cancelled or otherwise ceases to be valid;
 - (ii) your ABN is cancelled or ceases to be valid;
 - (iii) your insurance ceases to provide the required coverage;
 - (iv) your right or ability to lawfully provide any Professional Service materially changes; or
 - (v) any other information relevant to your eligibility to use the Platform materially changes.
- (e) STUNNER ALERT may require you to provide updated or additional information or evidence reasonably necessary to verify your identity, qualifications, insurance, business details or continuing eligibility to use the Platform.
 - (f) STUNNER ALERT may refuse, restrict or suspend your ability to list or provide a particular Professional Service where you do not provide reasonably requested eligibility evidence or where STUNNER ALERT reasonably believes that you no longer satisfy an applicable eligibility requirement, subject to the suspension and termination provisions of these Terms.
 - (g) STUNNER ALERT does not conduct police or criminal history checks as part of the current Professional eligibility process. Nothing in STUNNER ALERT's verification or eligibility process constitutes a guarantee or endorsement of a Professional's competence, conduct, suitability or performance.
 - (h) If you create or maintain an Account, list Professional Services or use the Platform on behalf of a company, partnership, organisation or other legal entity (Represented Entity), references to you or your in these Terms include the Represented Entity and you agree to these Terms on its behalf. You represent and warrant that you are authorised to do so.

4 DURATION

- (a) These Terms commence when you first agree to be bound by them and continue for as long as you have an Account, are listed or seek to be listed on the Platform, access or use the Platform as a Professional, or have any continuing rights or obligations arising from a Booking, unless terminated in accordance with these Terms.
- (b) These Terms do not create a fixed term, subscription period or automatic renewal arrangement.
- (c) Each confirmed Booking may give rise to a separate Service Contract between you and the relevant Customer for the Professional Services. The duration or termination of that Service Contract does not of itself terminate these Terms.
- (d) Termination of these Terms does not affect any rights, obligations or liabilities that accrued before termination or any provision of these Terms that is intended by its nature to continue after termination.

5 THE PLATFORM AND PROFESSIONAL SERVICES

5.1 SCOPE

- (a) Through the Platform, you may create and maintain a Professional profile, advertise Professional Services, set your own prices and availability, receive and manage Booking requests, communicate with Customers in connection with Bookings and receive payments for Professional Services through the Platform.
- (b) STUNNER ALERT provides the Platform Services, which include operating the Platform, introducing Customers to Professionals and facilitating Bookings and payments. STUNNER ALERT does not provide, perform, supervise or control the Professional Services you advertise, offer or supply through the Platform.
- (c) The features and functionality of the Platform and Platform Services available to Professionals will be as described on the Website or Platform from time to time.

Commented [A2]: Independent Contractor Relationship

Clause 5 expressly provides that each Professional operates their own independent business under their own ABN and is an independent contractor, not an employee, worker, agent, partner, joint venturer or representative of STUNNER ALERT.

It also confirms that STUNNER ALERT does not direct, supervise or control how the Professional operates their business or performs the Professional Services.

Clause 5.6 confirms that the Professional supplies the Professional Services directly to the Customer under a separate Service Contract and that STUNNER ALERT is not a party to that Service Contract.

5.2 ACCOUNTS

- (a) You must create and maintain an Account through the Platform to be listed and use the Platform as a Professional.
- (b) When creating and maintaining your Account, you must provide and keep current the information and evidence required under the Eligibility section; your listing must also accurately state your Professional Services, prices, availability and service areas.
- (c) You must promptly update material listing, availability and Booking information through the Platform.
- (d) You must take reasonable steps to keep your Account credentials secure and must promptly notify us if you become aware of any unauthorised access to or use of your Account.
- (e) Your Account is personal to you or the Represented Entity identified in your Account. You must not sell, transfer or assign your Account, share your Account credentials with another person or allow another person to access or operate your Account on your behalf except where expressly permitted by STUNNER ALERT.
- (f) Any delegate or assistant is subject to the Delegates and Assistants section.
- (g) We may reasonably refuse to create or activate an Account where you do not satisfy the eligibility requirements in these Terms, fail to provide information or evidence reasonably required for verification, or where refusal is reasonably necessary for legal or regulatory compliance, fraud prevention, security, payment risk or another legitimate Platform-integrity reason.
- (h) Any restriction, suspension or termination of an existing Account is subject to the suspension and termination provisions of these Terms.

5.3 PROFESSIONAL LISTINGS

- (a) You are responsible for creating and maintaining accurate information about the Professional Services you offer through the Platform, including their description, price, availability, location or service area and any qualifications, experience or other information displayed in your listing.
- (b) You must ensure that your listings:
 - (i) accurately describe the Professional Services you offer;
 - (ii) do not contain false, misleading or deceptive representations;
 - (iii) do not advertise Professional Services that you are not legally entitled, qualified or appropriately insured to provide;
 - (iv) do not infringe the Intellectual Property Rights, privacy rights or other rights of another person; and
 - (v) comply with applicable law and any reasonable Platform requirements notified to you.
- (c) You must promptly update your listing if any material information changes or becomes inaccurate or out of date.
- (d) STUNNER ALERT may require you to correct, update or remove a listing where we reasonably believe it is inaccurate, misleading, unlawful, infringes another person's rights or does not comply with these Terms or reasonable Platform requirements.

5.4 YOUR ROLE AS AN INDEPENDENT PROFESSIONAL

- (a) You operate your own independent business under your own ABN and are responsible for the Professional Services you advertise, offer and provide through the Platform.
- (b) Subject to any obligations arising from a Booking you have accepted, applicable law and the reasonable eligibility, safety and Platform requirements in these Terms, you independently determine:
 - (i) when, whether and how often you access or make yourself available through the Platform;

Commented [A3]: Provider Discretion

he Professional independently determines when and how often they make themselves available on the Platform, which Booking requests they accept or reject, the Professional Services and prices they offer, geographical areas serviced, listing content, artistic or professional methods, equipment, tools, products and materials used, and whether they use other platforms or channels. There is no minimum Booking, minimum-hours or exclusivity requirement.

- (ii) which Booking requests you accept or reject;
 - (iii) which Professional Services you offer and the prices you charge for those Professional Services;
 - (iv) the geographical areas in which you offer Professional Services;
 - (v) the content of your listings and service descriptions;
 - (vi) the manner, method and artistic or professional approach used to perform the Professional Services;
 - (vii) the equipment, tools, products and materials you use in providing the Professional Services; and
 - (viii) whether you also offer or provide services through other marketplaces, platforms or channels.
- (c) You are responsible for maintaining accurate availability through the Platform and managing your commitments on the Platform and through any other marketplace, platform or channel so as to avoid double bookings or other conflicts affecting a confirmed Booking.
 - (d) You bear the costs and expenses of operating your business and remain responsible for the performance, quality, suitability, safety and outcome of the Professional Services and associated complaints, claims, remedies and disputes; eligibility requirements are governed by the Eligibility section and delegates by the Delegates and Assistants section.
 - (e) Nothing in these Terms requires you to accept any minimum number or value of Bookings, maintain any minimum hours of availability or provide Professional Services exclusively through the Platform.
 - (f) You are an independent contractor operating your own business under your own ABN and are not an employee, worker, agent, partner, joint venturer or representative of STUNNER ALERT. Nothing in these Terms creates an employment, agency, partnership, joint venture or fiduciary relationship between you and STUNNER ALERT.
 - (g) You have no authority to enter into any agreement, make any representation, incur any obligation or otherwise act on behalf of or bind STUNNER ALERT.
 - (h) STUNNER ALERT does not direct, supervise or control the manner in which you operate your business or perform the Professional Services. Any eligibility requirements, Platform rules, safety requirements or enforcement action imposed by STUNNER ALERT regulate access to and use of the Platform and do not make STUNNER ALERT the provider, employer or supervisor of you or the Professional Services.

5.5 DELEGATES AND ASSISTANTS

- (a) You may engage a suitably qualified delegate, assistant, subcontractor or other person to assist with or perform part of the Professional Services, subject to this section and any applicable law.
- (b) Before any delegate, assistant, subcontractor or other person performs Professional Services, attends a Booking in a service-delivery capacity or is given access to Customer information through the Platform, you must ensure that the person:
 - (i) is legally entitled to perform the activities they will undertake;
 - (ii) holds all qualifications, licences, registrations, approvals, hygiene certificates and other credentials required for those activities;
 - (iii) holds or is covered by any insurance required by applicable law or these Terms; and
 - (iv) has completed any identity, qualification, eligibility or other verification process reasonably required by STUNNER ALERT.
- (c) Where a Customer has booked you personally or the Booking otherwise identifies you as the Professional expected to perform the Professional Services, you must not substitute another person to perform the Professional Services without the Customer's agreement and any update required through the Platform.

Commented [A4]: Delegations & Assistants

Professionals may engage suitably qualified delegates, assistants, subcontractors or other persons. Before participating in Professional Services, those persons must satisfy applicable legal entitlement, qualification, licensing, hygiene, insurance and identity/eligibility verification requirements reasonably required by STUNNER ALERT. The Professional remains responsible for their acts and omissions.

- (d) You must not permit a delegate, assistant, subcontractor or other person to use your Account credentials or access your Account except where expressly authorised by STUNNER ALERT.
- (e) You remain responsible for the acts and omissions of any delegate, assistant, subcontractor or other person you engage in connection with the Professional Services as if those acts or omissions were your own.
- (f) You must ensure that each person you engage complies with the obligations under these Terms that are relevant to their involvement in the Professional Services, including obligations relating to safety, privacy, confidentiality, professional conduct and Customer information.
- (g) STUNNER ALERT may refuse or withdraw approval for a person to participate in Bookings through the Platform where that person does not satisfy applicable identity, qualification, eligibility, insurance, safety or legal requirements.
- (h) Any identity, qualification or eligibility check performed by STUNNER ALERT in relation to a delegate, assistant, subcontractor or other person is for Platform access and risk-management purposes only and does not make STUNNER ALERT that person's employer, principal, supervisor or service provider or constitute a guarantee of that person's competence, conduct or suitability.

5.6 SERVICE CONTRACT WITH THE CUSTOMER

- (a) When a Booking is confirmed through the Platform in accordance with the booking process displayed through the Platform, a separate contract is formed directly between you and the relevant Customer for the Professional Services relating to that Booking, being the Service Contract.
- (b) As set out in Your Role as an Independent Professional, you are the supplier of and responsible for the Professional Services under each Service Contract.
- (c) STUNNER ALERT is not a party to the Service Contract, including when it facilitates a Booking, communications or payment.
- (d) Payment collection and the parties' merchant-of-record roles are governed by the Fees and Payment section.
- (e) You remain responsible for complying with all applicable laws, consumer guarantees, professional obligations and other legal requirements relating to the Professional Services you supply.
- (f) Any additional terms you seek to apply to the Professional Services must:
 - (i) be consistent with these Terms and the Booking confirmed through the Platform;
 - (ii) be clearly and accurately disclosed to the Customer before those additional terms become binding;
 - (iii) not conflict with any information or representation you have made through the Platform; and
 - (iv) comply with applicable law.
- (g) You must not represent to a Customer or any other person that STUNNER ALERT provides, performs, directs, supervises, guarantees or is responsible for your Professional Services.

5.7 PLATFORM ACCESS AND SOFTWARE

- (a) Subject to your compliance with these Terms and continuing eligibility to use the Platform, we grant you a limited, non-exclusive, non-transferable and non-sublicensable right to access and use the Platform for the purpose of listing and managing your Professional Services, receiving and managing Bookings, communicating with Customers and receiving payments facilitated through the Platform.
- (b) We may update, modify or improve the Platform's functionality, features, processes, presentation or technical elements for reasonable operational, technical, security, legal or legitimate commercial reasons, provided that any material exercise of this right is reasonable and proportionate.

- (c) A change to the Platform will not retrospectively alter the terms applying to a Booking already confirmed, a Service Contract already formed or any accrued rights or liabilities, except where required by law or expressly agreed by the relevant parties.

6 BOOKINGS AND CONFIRMATION

- (a) Customers may request or make Bookings for your Professional Services through the Platform using the booking process made available through the Platform.
- (b) Your discretion concerning availability, acceptance or rejection of Bookings, service areas and use of other platforms is governed by Your Role as an Independent Professional.
- (c) You are responsible for keeping your availability, Professional Service descriptions, prices, service areas and other material listing information accurate, complete and current.
- (d) Where the Platform requires you to accept or decline a Booking request, you must do so through the Platform within any response period displayed or otherwise reasonably specified through the Platform. If you do not respond within that period, the Booking request may expire without creating any obligation on you or the Customer.
- (e) A Booking is confirmed only when confirmation is displayed or otherwise communicated through the Platform. You are not required to accept a Booking request merely because it has been submitted to you.
- (f) Once a Booking is confirmed, a separate Service Contract is formed between you and the relevant Customer for the Professional Services. You must perform the Professional Services in accordance with the confirmed Booking, the Service Contract, these Terms and applicable law.
- (g) You must not accept or permit a Booking to be confirmed if you know, or reasonably ought to know, that you will be unable to perform the Professional Services in accordance with the confirmed Booking or any applicable qualification, licence, registration, insurance or other legal requirement.
- (h) If, after confirmation, you become aware of any circumstance that is reasonably likely to prevent or materially delay your attendance or performance of the Professional Services, you must promptly notify the Customer through the Platform and take any reasonable steps required under these Terms in relation to the affected Booking.
- (i) STUNNER ALERT may facilitate Booking requests, confirmations, communications and payments as part of the Platform Services but does not guarantee that you will receive any minimum number or value of Bookings or that any Customer will proceed with or complete a Booking.
- (j) Any cancellation, rescheduling, no-show, late arrival or other change affecting a confirmed Booking is subject to the applicable provisions of these Terms and the Service Contract between you and the Customer.

7 CANCELLATIONS, RESCHEDULING AND NO-SHOWS

7.1 CUSTOMER CANCELLATIONS

- (a) Customer cancellation mechanics are governed by the Customer Terms, subject to the Professional-relevant payment consequences below and applicable law.
- (b) Where a Customer cancels a Booking more than 24 hours before the scheduled commencement time of the Professional Services, the Customer will be entitled to the Platform Credit specified in the Customer Terms, less any applicable Admin Fee.
- (c) Where a Customer cancels a Booking within 24 hours before the scheduled commencement time of the Professional Services, a late cancellation fee equal to 50% of the Total Booking Price will apply and the remaining 50% will be dealt with in accordance with the Customer Terms, subject to applicable law.
- (d) Your entitlement to any Customer cancellation amount is subject to the Service Contract, applicable law and the Fees and Payment section.
- (e) Nothing in this section excludes, restricts or modifies any right, obligation or remedy that cannot lawfully be excluded, restricted or modified.

7.2 PROFESSIONAL CANCELLATIONS

- (a) If you are unable to attend or perform the Professional Services under a confirmed Booking, you must notify the Customer and STUNNER ALERT through the Platform as soon as reasonably practicable.
- (b) You must not cancel a confirmed Booking without a genuine reason and must take reasonable steps to minimise disruption to the Customer.
- (c) You must manage your availability and commitments, including commitments made through other marketplaces, platforms or channels, so as to avoid cancellations caused by double bookings or other scheduling conflicts within your reasonable control.
- (d) If you cancel a Booking, fail to attend or otherwise fail to provide the Professional Services, including because of a double booking within your reasonable control, you remain responsible for any applicable cancellation consequence and any refund, resupply, compensation or other remedy that you are required to provide to the Customer under the Service Contract or applicable law, and STUNNER ALERT may apply a 1-star rating for that Booking if it does so consistently under a reasonably disclosed moderation policy and in accordance with applicable law.
- (e) Any resulting refund, reversal or payment adjustment is governed by the Fees and Payment section.
- (f) Repeated, avoidable or material cancellations, failures to attend, double bookings or other material failures to perform confirmed Bookings may result in restriction, suspension or termination of your Account in accordance with these Terms.
- (g) Nothing in this section excludes, restricts or modifies any right, obligation or remedy that cannot lawfully be excluded, restricted or modified.

7.3 RESCHEDULING

- (a) Any request to reschedule a confirmed Booking must be communicated and managed through the Platform where that functionality is available.
- (b) You are not required to accept a Customer's proposed rescheduling request, but if you agree to reschedule a Booking, the revised date, time and any material changes to the Professional Services or Professional Service Fee must be accurately reflected through the Platform where applicable.
- (c) A rescheduling is not effective until agreed between you and the Customer and confirmed through the Platform.
- (d) Any change to the Professional Services, Professional Service Fee or other terms arising from a rescheduling forms part of the Service Contract between you and the Customer.

7.4 NO-SHOWS AND ACCESS

- (a) If a Customer fails to attend a Booking, is not available at the agreed service location or otherwise fails to make themselves reasonably available for you to perform the Professional Services without having cancelled the Booking in accordance with the Customer Terms, the Customer may be treated as a no-show.
- (b) Where a Customer is treated as a no-show, subject to applicable law, 100% of the Total Booking Price may be charged or retained in accordance with the Customer Terms.
- (c) If a Customer is more than 20 minutes late for a Booking, you may:
 - (i) continue with the Professional Services where reasonably practicable; or
 - (ii) cancel the Booking, in which case a cancellation fee equal to 50% of the Total Booking Price may apply in accordance with the Customer Terms.
- (d) If a Customer fails to provide reasonable access to the agreed service location, provides materially inaccurate access information or otherwise prevents you from commencing the Professional Services at the agreed time, the circumstances may be treated as a late arrival or no-show where reasonably appropriate having regard to the circumstances.

- (e) You must record or notify STUNNER ALERT through the Platform as soon as reasonably practicable where you treat a Customer as a no-show, cancel because of late arrival or are prevented from commencing the Professional Services because of an access issue.
- (f) Your entitlement to any no-show, late-arrival or access-failure amount is subject to the Service Contract, applicable law and the Fees and Payment section.
- (g) If you fail to attend a confirmed Booking or are not reasonably available to perform the Professional Services, you remain responsible for any refund, remedy or other consequence arising under the Service Contract, these Terms or applicable law.
- (h) Nothing in this section excludes, restricts or modifies any right, obligation or remedy that cannot lawfully be excluded, restricted or modified.

8 DATA HOSTING AND STORAGE

- (a) We may use third-party providers, including Amazon Web Services and MongoDB, to host, store and process Platform information; we intend to use Australian data centres where appropriate, but information may be stored, processed or accessed overseas as described in our Privacy Policy.
- (b) We will take reasonable steps concerning hosting, security and availability within our control, but third-party services may be unavailable or insecure due to circumstances outside our reasonable control; this does not exclude our responsibility for failing to take reasonable care in matters within our control.
- (c) We may provide or make available information to third-party service providers where reasonably necessary to operate the Platform, provide the Platform Services, facilitate Bookings or payments, verify Professional eligibility or otherwise perform our obligations under these Terms, subject to our Privacy Policy and applicable law.
- (d) Our collection, use, disclosure, storage and handling of personal information is further described in our Privacy Policy.
- (e) Nothing in this section excludes, restricts or modifies any right, remedy or other protection that cannot lawfully be excluded, restricted or modified.

9 YOUR RESPONSIBILITIES

9.1 ELIGIBILITY CROSS-REFERENCE

- (a) The Eligibility section governs all onboarding, ABN, ID and selfie verification, qualifications, licences, hygiene certificates, insurance and Certificate of Currency, payment-account information and change-notification requirements.

9.2 YOUR PROFESSIONAL OBLIGATIONS

- (a) You are responsible for the Professional Services you advertise, offer and provide through the Platform and must:
 - (i) perform the Professional Services with due care and skill and in accordance with the confirmed Booking, the Service Contract and applicable law;
 - (ii) provide the Professional Services substantially in accordance with the description, price and other material information displayed in your listing or otherwise agreed with the Customer;
 - (iii) comply with all applicable professional, industry, hygiene, infection-control, health, safety and other legal requirements relevant to the Professional Services;
 - (iv) attend confirmed Bookings at the agreed location and at or reasonably close to the agreed commencement time;
 - (v) promptly communicate through the Platform if you become aware that you may be late, unable to attend or unable to perform the Professional Services as agreed;

Commented [A5]: Qualifications & Safety

Professionals warrant that they are legally entitled to provide each listed Professional Service and must hold and maintain all qualifications, licences, registrations, approvals, hygiene certificates and other authorisations required by law or reasonably required for their services. They must also comply with applicable professional, industry, hygiene, infection-control, health and safety requirements when providing Professional Services.

- (vi) treat Customers and other persons with reasonable courtesy, professionalism and respect and not engage in harassment, threatening, discriminatory, sexually inappropriate or other unlawful or serious misconduct;
 - (vii) take reasonable care for the health and safety of Customers, yourself and other persons affected by your performance of the Professional Services;
 - (viii) promptly notify STUNNER ALERT through the Platform of any material safety incident, serious complaint, suspected fraud or other material issue arising in connection with a Booking where notification is reasonably necessary for Platform safety, integrity or administration;
 - (ix) deal with Customers, through the Platform where applicable, in relation to complaints, claims, remedies and disputes concerning the quality, performance, safety or outcome of your Professional Services; and
 - (x) comply with any reasonable eligibility, Platform or safety requirements notified to you by STUNNER ALERT that regulate your access to or use of the Platform without directing the manner in which you operate your independent business.
- (b) Any delegate, assistant, subcontractor or other person engaged in connection with Professional Services is governed exclusively by the Delegates and Assistants section.
 - (c) You must not represent or imply that you or any person you engage is an employee, worker, agent, partner, joint venturer or representative of STUNNER ALERT or that STUNNER ALERT provides, performs, directs, supervises or guarantees your Professional Services.

9.3 PLATFORM USE

- (a) You must comply with these Terms and must ensure that any Personnel authorised by us to access or use the Platform on your behalf also comply with these Terms.
- (b) You must not, and must not encourage, assist or permit any other person to:
 - (i) use the Platform for any unlawful, fraudulent, abusive or improper purpose;
 - (ii) provide false, misleading or fraudulent information through the Platform or in connection with an Account, Professional profile, listing or Booking;
 - (iii) impersonate another person or misrepresent your identity, qualifications, experience, authority or relationship with STUNNER ALERT;
 - (iv) advertise, offer or provide Professional Services that you are not legally entitled, appropriately qualified or appropriately insured to provide;
 - (v) copy, reproduce, republish, distribute, sell, resell, sublicense, commercially exploit or otherwise make available any material part of the Platform except as expressly permitted by these Terms or by law;
 - (vi) scrape, crawl, data mine, harvest or otherwise systematically extract data, Customer information, listings, content or other information from the Platform;
 - (vii) use any bot, script, software or other automated process to access, query or interact with the Platform except where expressly authorised by us;
 - (viii) modify, adapt, reverse engineer, decompile, disassemble or otherwise attempt to derive the source code, underlying structure or other protected components of the Platform, except to the extent such restriction is prohibited by law;
 - (ix) circumvent, disable, interfere with or attempt to defeat any security, access control or technological protection applying to the Platform;
 - (x) remove, obscure or alter any copyright, trade mark, attribution, proprietary notice or other notice appearing on the Platform;
 - (xi) use the Platform in a manner that infringes or misuses any Intellectual Property Rights, privacy rights or other rights of STUNNER ALERT, a Customer or another person;
 - (xii) interfere with, disrupt, damage or place an unreasonable burden on the Platform or any systems, networks or infrastructure used to provide it;

- (xiii) access or attempt to access another person's Account or any part of the Platform that you are not authorised to access;
- (xiv) share your Account credentials with another person or allow another person to use your Account except where expressly permitted by us;
- (xv) use Customer information obtained through the Platform for any purpose unrelated to the relevant Booking or Professional Services, except with the Customer's informed consent or as otherwise permitted by law;
- (xvi) harass, threaten, abuse, discriminate against or otherwise engage in unlawful or inappropriate conduct towards a Customer or any other person through or in connection with the Platform; or
- (xvii) use the Platform in a way that is materially inconsistent with its intended purpose as described in these Terms.

9.4 ACCOUNT SECURITY

- (a) You must take reasonable precautions to maintain the confidentiality and security of your Account credentials and are responsible for activity you authorise through your Account and for loss to the extent caused or contributed to by your failure to take those precautions.
- (b) You must promptly notify us if you become aware of suspected or actual unauthorised access to or use of your Account or any security breach affecting it.

9.5 OFF-PLATFORM DEALINGS AND CIRCUMVENTION

- (a) You must not intentionally use a relationship with, or information about, a Customer obtained through the Platform to circumvent the Platform's booking or payment arrangements, the Marketplace Facilitation Fee or any other amount properly payable to STUNNER ALERT.
- (b) Without limiting the above, where a Customer was introduced to you through the Platform, you must not:
 - (i) solicit, encourage or arrange for the Customer to obtain substantially the same Professional Services from you outside the Platform where the purpose or effect is to avoid the Platform's booking or payment arrangements;
 - (ii) request, encourage or accept cash, bank transfer or another form of payment outside the Platform for Professional Services that are required to be booked or paid for through the Platform;
 - (iii) encourage, request or assist the Customer to cancel a Booking so that substantially the same Professional Services can instead be provided directly or through another channel;
 - (iv) redirect a Booking or prospective Booking obtained through the Platform to another marketplace, platform, business or payment channel for the purpose of avoiding amounts payable under these Terms; or
 - (v) provide false, incomplete or misleading information, conceal a transaction or otherwise take steps intended to disguise or facilitate conduct prohibited by this section.
- (c) Nothing in this section prevents you from communicating directly with a Customer where reasonably necessary to arrange or perform Professional Services under a Booking made through the Platform or from providing services outside the Platform to a person where doing so does not involve circumvention prohibited by this section.
- (d) An intentional or material breach of this section is a serious breach of these Terms.
- (e) Where STUNNER ALERT reasonably believes that you have intentionally circumvented or attempted to circumvent the Platform's booking or payment arrangements, STUNNER ALERT may immediately restrict, suspend or deactivate your Account, remove or restrict your Professional profile or listings, prevent you from accepting new Bookings or otherwise restrict your access to the Platform, subject to the suspension and termination provisions of these Terms.

Commented [A6]: Strict Anti-Circumvention

Clause 9.5 strictly prohibits Professionals from using Customer relationships or information obtained through the Platform to bypass STUNNER ALERT's Booking or payment arrangements. This includes soliciting Platform-acquired Customers for substantially the same services off-platform, accepting cash or bank transfers outside the Platform, encouraging a Customer to cancel and rebook directly, redirecting Bookings to another platform or payment channel, and concealing transactions intended to avoid Platform fees

- (f) You remain liable for any Marketplace Facilitation Fee or other amount that would have become properly payable to STUNNER ALERT if the relevant Booking or transaction had been completed through the Platform in accordance with these Terms.
- (g) In addition, where intentional circumvention requires STUNNER ALERT to investigate, administer or rectify the matter, you must reimburse STUNNER ALERT for the reasonable, documented administrative costs it actually incurs in doing so, capped at the lesser of those documented costs and \$100 per circumvention event; this reimbursement is compensatory, is not intended to be an unlawful penalty and applies only to the extent permitted by law.
- (h) You authorise STUNNER ALERT and the applicable Payment Provider to deduct any amount properly payable under this section from amounts otherwise payable to you through the Platform, to the extent permitted by these Terms and applicable law.
- (i) STUNNER ALERT must not recover twice for the same loss, cost or amount under this section.

10 SAFETY AND SERVICES AT PRIVATE PREMISES

- (a) Professional Services may be performed at a Customer's home, hotel, workplace or another private or non-public location.
- (b) You must take reasonable care for your own health and safety and the health and safety of Customers and other persons while providing the Professional Services and must comply with applicable health, safety, professional, hygiene and other legal requirements.
- (c) Before and during a Booking, you must take reasonable account of circumstances that may affect the safe performance of the Professional Services, including:
 - (i) access to and from the service location;
 - (ii) the physical condition, security and suitability of the service location;
 - (iii) the presence or conduct of minors or other persons;
 - (iv) pets or other animals;
 - (v) intoxication or impairment of any person present;
 - (vi) violence, threats, harassment, intimidation, abuse, discriminatory conduct or sexually inappropriate conduct;
 - (vii) unsafe, unlawful or seriously inappropriate conduct;
 - (viii) unsafe equipment, access conditions or other physical hazards; and
 - (ix) any other circumstance that creates a material risk to the health, safety or wellbeing of you or another person.
- (d) You are not required under these Terms to enter or remain at a service location, commence the Professional Services or continue providing the Professional Services where you reasonably consider that doing so would:
 - (i) expose you or another person to a material health or safety risk;
 - (ii) require you to act unlawfully;
 - (iii) expose you to threatening, abusive, harassing, discriminatory or sexually inappropriate conduct; or
 - (iv) prevent you from providing the Professional Services safely or in accordance with applicable professional, hygiene or legal requirements.
- (e) Where an issue can reasonably be remedied without exposing you or another person to further risk, you may explain the concern to the Customer and give the Customer a reasonable opportunity to remedy it before refusing to commence or discontinuing the Professional Services.
- (f) You are not required to remain at the service location or provide the Customer with an opportunity to remedy an issue where you reasonably consider that there is an immediate or serious risk to health or safety.

Commented [A7]: Safety & Protection

Clause 10 contains specific protections for Professionals attending homes, hotels, workplaces and other private premises. A Professional may refuse to enter, refuse to commence, stop providing Professional Services and leave where there is a material or immediate safety risk, unlawful conduct, threats, harassment, intoxication or other unsafe circumstances.

They may move to a safe location, contact emergency services and subsequently report the incident through the Platform. Where the Customer causes or materially contributes to the unsafe circumstances, the Booking is treated as a Customer no-show for payment and payout purposes.

This provides the requested payout protection subject to the Terms and applicable law, rather than an unconditional payment guarantee

- (g) Where you reasonably consider that there is an immediate or serious safety risk, you may refuse to enter, stop providing the Professional Services and leave the service location. You may move to a safe location, contact emergency services or take any other reasonable step necessary to protect yourself or another person before contacting STUNNER ALERT.
- (h) You must report through the Platform as soon as reasonably practicable, and once it is safe to do so, any serious safety incident, threat, violence, harassment, injury, property damage or other material safety matter arising in connection with a Booking and provide any information reasonably required by STUNNER ALERT to administer the incident.
- (i) Where you reasonably refuse to enter or commence, or discontinue the Professional Services and leave, because of a Customer's breach of their safety or premises obligations, or circumstances caused or materially contributed to by the Customer or a person or animal within the Customer's reasonable control, the Booking will be treated as a Customer no-show for payment and payout purposes in accordance with these Terms and the Customer Terms, subject to applicable law.
- (j) Any amount arising from a safety-related refusal or discontinuation will be processed under the Fees and Payment section, consistently with the no-show payout protection above.
- (k) STUNNER ALERT may take reasonable Platform-related action in response to a reported safety matter, including contacting the Customer, requesting further information, restricting or suspending an Account or taking other action reasonably necessary to protect Platform users. STUNNER ALERT does not thereby direct or supervise the Professional Services or assume responsibility for controlling the service location.
- (l) Nothing in this section requires you to place yourself or another person at risk in order to comply with a Platform process, report an incident or preserve any entitlement relating to a Booking.
- (m) Nothing in this section excludes, restricts or modifies any right, obligation or protection under applicable health and safety legislation or any other applicable law that cannot lawfully be excluded, restricted or modified.

11

CUSTOMER COMPLAINTS AND CLAIMS

- (a) You are responsible for dealing with complaints, claims, refund requests and remedies arising from the Professional Services you provide under a Service Contract.
- (b) If a Customer raises a complaint concerning the quality, performance, safety, conduct, cancellation, non-performance or outcome of your Professional Services, you must respond within a reasonable time, act in good faith and provide reasonable information or assistance necessary to address the complaint.
- (c) You must comply with any consumer guarantee, refund obligation, compensation obligation or other remedy that applies to you as the supplier of the Professional Services under applicable law.
- (d) Where STUNNER ALERT receives a complaint or claim concerning your Professional Services, you must provide any information and assistance reasonably requested by STUNNER ALERT for the purpose of:
 - (i) understanding or administering the complaint or claim;
 - (ii) facilitating communications between you and the Customer;
 - (iii) administering a payment adjustment, refund or other outcome agreed between you and the Customer or required by applicable law;
 - (iv) investigating a safety, fraud, misconduct or Platform-integrity issue; or
 - (v) responding to a related complaint, claim, chargeback, regulatory inquiry or legal requirement.
- (e) STUNNER ALERT may facilitate an internal escalation process between you and the Customer and may take reasonable steps to assist the parties to resolve a dispute. STUNNER ALERT does not guarantee that a dispute will be resolved and does not become the supplier of the Professional Services, a party to the Service Contract or responsible for determining or providing a remedy owed by you to the Customer merely because it facilitates a dispute or complaint process.

Commented [A8]: Reviews & Disputes

STUNNER ALERT may facilitate an internal escalation process and take reasonable steps to assist the Professional and Customer to resolve complaints and disputes. All Customer ratings, reviews and feedback are reviewed and moderated by STUNNER ALERT before publication. Where a proposed or published review contains a serious allegation or materially adverse complaint, the Professional is given a reasonable opportunity to provide information or respond before a publication decision is made, except where immediate action is reasonably required for safety, legal, regulatory or Platform-integrity reasons. Clause 19 separately provides the formal dispute-resolution procedure.

- (f) Where the Platform permits Customers to submit ratings, reviews or other feedback concerning you or your Professional Services, STUNNER ALERT will review and moderate all such content before publication and may delay, restrict, remove or decline to publish content where it reasonably considers that:
 - (i) the content may be false, misleading, unlawful, defamatory, threatening, abusive, discriminatory or harassing;
 - (ii) the content contains personal, confidential or sensitive information that should not be published;
 - (iii) the content does not appear to relate to a genuine Booking or experience;
 - (iv) the content raises a serious complaint, safety issue or dispute that reasonably requires further information or investigation; or
 - (v) moderation is otherwise reasonably necessary to protect the integrity, safety or proper operation of the Platform.
- (g) Where a proposed or published review raises a serious allegation or materially adverse complaint concerning you or your Professional Services, STUNNER ALERT will give you a reasonable opportunity to provide information or respond to the matters raised before deciding whether and in what form the review will be published or remain available through the Platform, unless immediate action is reasonably necessary because of a serious safety, legal, regulatory or Platform-integrity concern.
- (h) You must provide accurate and not misleading information when responding to a complaint, claim, review or investigation and must not manipulate reviews, submit or arrange false reviews, improperly pressure a Customer to change or remove a genuine review, or retaliate against a Customer for making a complaint or providing genuine feedback.
- (i) STUNNER ALERT may take reasonable Platform-related action arising from a complaint, claim, review or investigation, including requesting further information, restricting particular listings or functionality, or restricting, suspending or terminating an Account in accordance with these Terms.
- (j) Where a complaint concerns the Platform Services or conduct of STUNNER ALERT rather than your Professional Services, STUNNER ALERT remains responsible for dealing with that complaint to the extent required by these Terms and applicable law.
- (k) Nothing in this section excludes, restricts or modifies any consumer guarantee, statutory right, complaint process or other right or remedy available to a Customer, you or STUNNER ALERT that cannot lawfully be excluded, restricted or modified.

12 FEES AND PAYMENT

12.1 PROFESSIONAL SERVICE FEES

- (a) You determine the price of the Professional Services you offer through the Platform and are responsible for ensuring that your prices and other information displayed to Customers are accurate, current and comply with applicable law.
- (b) You are the supplier and merchant of record in respect of the Professional Services supplied by you to a Customer under a Service Contract. STUNNER ALERT does not become the supplier of the Professional Services merely because it facilitates the Booking or collects or processes payment through the Platform.
- (c) In consideration for STUNNER ALERT providing the Platform Services, you must pay STUNNER ALERT a marketplace facilitation fee equal to 20% of the amount payable by the Customer for your Professional Services in connection with each Booking (Marketplace Facilitation Fee).
- (d) GST equal to 10% of the Marketplace Facilitation Fee is payable in addition to the Marketplace Facilitation Fee where applicable, or at any replacement rate required by applicable law.
- (e) You authorise STUNNER ALERT and the applicable Payment Provider to deduct the Marketplace Facilitation Fee, together with any applicable GST and any other amount

Commented [A9]: Payment Collection Agency

Payments are processed or facilitated through Stripe Connect or another nominated Payment Provider. The Professional must maintain their own connected payment account and expressly appoints STUNNER ALERT as their limited payment collection agent for amounts payable by Customers in connection with Bookings. STUNNER ALERT and Stripe are authorised to collect payments, make permitted deductions and release the net payout to the Professional

expressly deductible under these Terms, from amounts collected in connection with a Booking before the balance is paid or released to you.

- (f) Your entitlement to a payout for a Booking is therefore the amount collected in respect of your Professional Services less:
 - (i) the Marketplace Facilitation Fee;
 - (ii) GST applicable to the Marketplace Facilitation Fee;
 - (iii) any applicable payment-processing fee for which you are responsible under these Terms;
 - (iv) any refund, reversal, chargeback, cancellation adjustment or other amount properly attributable to you under these Terms; and
 - (v) any other amount that you have expressly authorised STUNNER ALERT or the applicable Payment Provider to deduct.
- (g) The Marketplace Facilitation Fee is separate from the consideration payable to you for Professional Services, and STUNNER ALERT is the supplier and merchant of record only for its Platform Services and Marketplace Facilitation Fee.
- (h) Unless otherwise expressly stated in these Terms, the Marketplace Facilitation Fee becomes payable when the relevant Booking is confirmed and is subject to any applicable cancellation, refund, reversal or adjustment provisions of these Terms.
- (i) You must not represent to a Customer or any other person that the Marketplace Facilitation Fee is an additional amount payable by the Customer unless that amount is separately and expressly displayed to the Customer through the Platform.

12.2 PAYMENT PROCESSING AND STRIPE

- (a) Payments relating to Bookings are processed or facilitated through Stripe Connect or another Payment Provider nominated by STUNNER ALERT.
- (b) You must create and maintain your own valid Stripe Connect connected account, or an account with any replacement Payment Provider nominated by STUNNER ALERT, and provide any information, verification material or authorisation reasonably required by STUNNER ALERT or the Payment Provider to establish, maintain and operate the payment arrangements contemplated by these Terms.
- (c) Your use of Stripe Connect or another Payment Provider may be subject to that provider's applicable terms, policies, verification requirements, reserve arrangements, dispute procedures and other conditions, and you are responsible for complying with requirements that apply directly to you.
- (d) You appoint STUNNER ALERT as your limited payment collection agent for the purpose of facilitating the collection of amounts payable by Customers in connection with Bookings through the Platform.
- (e) Payment by a Customer to STUNNER ALERT or the applicable Payment Provider in accordance with the Platform's authorised payment process will, to the extent of the amount successfully received, satisfy the Customer's corresponding payment obligation to you for the relevant Professional Services.
- (f) You authorise STUNNER ALERT and the applicable Payment Provider to:
 - (i) collect and process payments relating to Bookings;
 - (ii) deduct the Marketplace Facilitation Fee and applicable GST;
 - (iii) deduct any other fees, refunds, reversals, chargebacks, adjustments or amounts properly payable by you under these Terms;
 - (iv) hold amounts where required by the applicable payment-processing arrangements; and
 - (v) pay or release the remaining amount to your connected payment account in accordance with the applicable payout arrangements.
- (g) Subject to successful collection from the Customer, applicable deductions and the Payment Provider's processing requirements, the net amount payable to you will be transferred or

Commented [A10]: Commission Deductions

Clause 12.1 provides for a Marketplace Facilitation Fee equal to 20% of the amount payable for the Professional Services, with GST equal to 10% of that Marketplace Facilitation Fee payable in addition where applicable. The Professional expressly authorises STUNNER ALERT and the Payment Provider to deduct the Marketplace Facilitation Fee, applicable GST and other authorised deductions before releasing the net payout through Stripe Connect.

The Professional remains the supplier and merchant of record for the Professional Services, while STUNNER ALERT is the supplier and merchant of record only for its Platform Services and Marketplace Facilitation Fee

released to your connected payment account, and you are responsible for all Stripe or other payment-processing fees applicable to your Bookings, transactions and payouts.

- (h) You acknowledge that the timing of a payout may be affected by payment-provider processing periods, verification requirements, fraud or risk reviews, reserves, chargebacks, payment disputes, reversals, technical issues or other matters arising under the applicable payment arrangements.
- (i) STUNNER ALERT is not responsible for an act, omission, delay, withholding, suspension, error or failure of a Payment Provider to the extent that the matter is outside STUNNER ALERT's reasonable control, but this does not exclude responsibility for STUNNER ALERT's own acts or omissions.
- (j) You must promptly provide any information or take any reasonable action requested by STUNNER ALERT or the applicable Payment Provider to investigate or resolve a payment-processing, verification, chargeback or payout issue relating to your Account or a Booking.

12.3 REFUNDS, REVERSALS AND PAYMENT DISPUTES

- (a) You are responsible for dealing with the Customer, through the Platform where applicable, in relation to any refund, adjustment, resupply, compensation or other remedy arising from the Professional Services you provide.
- (b) Any refund or other remedy that you are required to provide in relation to the Professional Services will be determined in accordance with the Service Contract, these Terms and applicable law.
- (c) STUNNER ALERT may facilitate communications, refunds, payment adjustments, reversals or credits between you and the Customer without becoming the supplier of the Professional Services or assuming your obligations under the Service Contract.
- (d) You authorise STUNNER ALERT and the applicable Payment Provider to deduct from amounts otherwise payable to you, or recover from you where necessary, any refund, reversal, chargeback or other payment adjustment properly attributable to:
 - (i) your cancellation or failure to provide the Professional Services;
 - (ii) a refund or remedy owed by you to a Customer;
 - (iii) a Customer payment dispute or chargeback concerning your Professional Services;
 - (iv) fraudulent, unauthorised or improperly processed transactions attributable to your conduct or Account; or
 - (v) another amount for which you are responsible under these Terms or applicable law.
- (e) If a Customer initiates a chargeback, payment reversal or other payment dispute relating to a Booking, you must promptly provide STUNNER ALERT and, where applicable, the Payment Provider with reasonable information and assistance concerning the Booking, the Professional Services and the circumstances giving rise to the dispute.
- (f) STUNNER ALERT may submit transaction records, Booking information, communications or other relevant evidence to the Payment Provider in connection with a chargeback or payment dispute where reasonably necessary.
- (g) Responsibility as between you and STUNNER ALERT for a chargeback, reversal, refund or related fee will be determined having regard to the service or obligation to which the disputed amount relates, these Terms, the applicable payment-processing arrangements and applicable law.
- (h) Any adjustment to the Marketplace Facilitation Fee following a cancellation, refund, reversal or chargeback will be determined in accordance with these Terms and any applicable policy expressly incorporated into them.
- (i) Nothing in this section excludes, restricts or modifies any right, obligation or protection that cannot lawfully be excluded, restricted or modified.

12.4 PAYMENT ERRORS

- (a) We may take reasonable steps, or request Stripe to take reasonable steps, to correct a genuine payment-processing error so that amounts paid or received reflect the amounts properly payable for the relevant Booking.
- (b) You must promptly notify us if you become aware of an apparent error in an amount paid to or withheld from you through the Platform.
- (c) Nothing in this section permits STUNNER ALERT to retrospectively alter the price you set for Professional Services relating to a confirmed Booking.

12.5 GST AND TAXES

- (a) You are responsible for determining and complying with all taxation, GST, registration, reporting and other fiscal obligations arising from your business, the Professional Services you provide and amounts paid or payable to you in connection with Bookings.
- (b) Without limiting the above, you are responsible for:
 - (i) registering for GST where required by law;
 - (ii) accounting for and paying any GST applicable to the Professional Services you supply;
 - (iii) income tax and any other tax payable in connection with your business or amounts you receive;
 - (iv) maintaining any records required for taxation purposes; and
 - (v) making any superannuation contributions for which you are legally responsible in connection with yourself or any person you engage in your business.
- (c) Where you are required by law to charge GST in relation to the Professional Services, you must ensure that the prices and other information you provide through the Platform appropriately account for that GST and comply with applicable pricing and tax laws.
- (d) The Marketplace Facilitation Fee payable to STUNNER ALERT is exclusive of GST unless expressly stated otherwise. Where GST applies to that fee, you must pay the applicable GST in addition to the Marketplace Facilitation Fee and you authorise STUNNER ALERT and the applicable Payment Provider to deduct that GST together with the Marketplace Facilitation Fee in accordance with these Terms.
- (e) You must provide STUNNER ALERT with your ABN, GST registration status and any other taxation information reasonably required to administer payments, issue or facilitate payment documentation or comply with applicable taxation or reporting obligations.
- (f) STUNNER ALERT may collect, use and disclose information concerning you, your Bookings and payments where reasonably required to comply with taxation, record-keeping or reporting obligations imposed by law, including obligations to provide information to the Australian Taxation Office or another competent authority.
- (g) Nothing in these Terms transfers to STUNNER ALERT responsibility for a tax, GST, superannuation contribution or other fiscal obligation that is legally imposed on you. This does not exclude or alter any taxation, superannuation or other statutory obligation that applicable law imposes directly on STUNNER ALERT.
- (h) STUNNER ALERT is separately responsible for its own taxation obligations arising from the Platform Services and Marketplace Facilitation Fees it supplies or receives.

Commented [A11]: Tax Responsibilities

The Professional is responsible for taxation, GST registration and compliance, income tax, required tax records and any superannuation contributions for which they are legally responsible in connection with themselves or persons engaged in their business. The Terms expressly confirm that these obligations remain with the Professional operating their own business and are not transferred to STUNNER ALERT.

12.6 TAX INVOICES, RCTIS AND TAX REPORTING

- (a) You authorise STUNNER ALERT, to the extent permitted by applicable law, to generate, issue or facilitate tax invoices, receipts, statements or other payment documentation on your behalf in connection with Professional Services, Bookings and amounts collected or paid through the Platform.
- (b) Any tax invoice or other document issued or facilitated by STUNNER ALERT on your behalf does not make STUNNER ALERT the supplier of the Professional Services or alter the Service Contract between you and the Customer.

Commented [A12]: RCTI Authorization

The Professional authorises STUNNER ALERT, where legally permitted, to generate or facilitate tax invoices and to issue or facilitate Recipient Created Tax Invoices on the Professional's behalf in accordance with GST law and ATO requirements. The clause also requires the Professional to provide their ABN, GST registration status and other necessary information and permits STUNNER ALERT to comply with applicable ATO and other statutory reporting requirements.

- (c) To the extent STUNNER ALERT is legally entitled to do so, you authorise STUNNER ALERT to issue or facilitate recipient created tax invoices on your behalf for applicable taxable supplies in accordance with applicable GST law and Australian Taxation Office requirements.
- (d) Where a recipient created tax invoice arrangement applies, you must:
 - (i) provide STUNNER ALERT with your correct ABN and GST registration status;
 - (ii) not issue a separate tax invoice for a taxable supply for which STUNNER ALERT validly issues a recipient created tax invoice;
 - (iii) promptly notify STUNNER ALERT if you cease to be registered for GST or if any information relevant to the recipient created tax invoice becomes inaccurate or changes; and
 - (iv) provide any information reasonably required for STUNNER ALERT to prepare, correct or administer the relevant tax documentation.
- (e) Nothing in these Terms requires STUNNER ALERT to issue a recipient created tax invoice where the requirements for doing so are not satisfied or where STUNNER ALERT reasonably determines that another invoicing arrangement is appropriate.
- (f) STUNNER ALERT may collect, retain, use and disclose information relating to you, your ABN, GST registration status, Professional Services, Bookings, transactions, payouts, Marketplace Facilitation Fees and other payments where reasonably required to comply with taxation, record-keeping or reporting obligations imposed by applicable law.
- (g) You acknowledge that STUNNER ALERT may be required by law to report information concerning you, your business, Bookings, transactions or payments to the Australian Taxation Office or another government or regulatory authority.
- (h) You must provide accurate and complete information reasonably requested by STUNNER ALERT for taxation or reporting purposes and promptly notify STUNNER ALERT if relevant information changes.
- (i) The preparation, issue or facilitation of tax documentation or tax reporting by STUNNER ALERT does not transfer to STUNNER ALERT responsibility for your own taxation obligations except to the extent an obligation is imposed directly on STUNNER ALERT by applicable law.

13 INTELLECTUAL PROPERTY AND DATA

13.1 OUR INTELLECTUAL PROPERTY

- (a) We own or license all Intellectual Property Rights in the Platform and the materials made available through it, including the software, design, functionality, text, graphics, logos, trade marks, booking functionality, presentation and other content created by or for us (Platform Content).
- (b) Platform Content does not include Professional Content or other Third Party Content except to the extent that STUNNER ALERT separately owns or licenses rights in that content.
- (c) Nothing in these Terms transfers ownership of any Intellectual Property Rights to you.

13.2 LICENCE TO YOU

- (a) Subject to your compliance with these Terms and your continuing eligibility to use the Platform, we grant you a limited, non-exclusive, non-transferable and non-sublicensable licence to access and use the Platform and Platform Content for the purposes of operating your business through the Platform, maintaining your Professional profile and listings, managing Bookings, communicating with Customers and receiving payments facilitated through the Platform.
- (b) Except as expressly permitted by these Terms or by law, you must not:
 - (i) reproduce, modify, adapt, publish, distribute, communicate, sell, resell, sublicense or commercially exploit the Platform or Platform Content;

Commented [A13]: IP License

Professionals retain ownership of their Professional Content but grant STUNNER ALERT a non-exclusive, worldwide, royalty-free licence to use, display, reproduce, publish and reasonably adapt portfolio images, work photographs and other Professional Content for operation of the Platform, Professional promotion, website/digital channels, social media and other marketing purposes.

Professionals may use other platforms but must manage their availability and commitments to avoid double bookings.

A Professional-caused double booking may attract applicable cancellation consequences and STUNNER ALERT may apply a 1-star rating in accordance with a reasonably disclosed moderation policy and applicable law.

- (ii) copy or use Platform Content to create or develop a competing platform, product or service;
- (iii) remove, obscure or alter any copyright, trade mark, attribution or proprietary notice appearing on the Platform; or
- (iv) use the Platform or Platform Content in a manner that infringes or misuses any Intellectual Property Rights of STUNNER ALERT or another person.

13.3 PROFESSIONAL CONTENT

- (a) You retain ownership of any Intellectual Property Rights you hold in photographs, portfolio materials, profile information, service descriptions, logos, trade marks, text, images, videos and other content that you upload, submit, publish or otherwise make available through the Platform (Professional Content).
- (b) You are responsible for the Professional Content you provide and for ensuring that it is accurate, lawful and appropriate for use through the Platform.
- (c) You must not upload, publish or otherwise provide Professional Content that:
 - (i) infringes any Intellectual Property Rights, privacy rights, confidentiality obligations or other rights of another person;
 - (ii) contains photographs, video or other material depicting an identifiable person unless you have obtained all permissions and consents reasonably required to permit the use contemplated by these Terms;
 - (iii) is false, misleading, deceptive, defamatory, unlawful, offensive or otherwise inappropriate;
 - (iv) contains confidential information that you are not authorised to disclose; or
 - (v) otherwise breaches these Terms or applicable law.
- (d) You warrant that you own the Professional Content or otherwise have all rights, licences, permissions and consents required to provide it to STUNNER ALERT and permit STUNNER ALERT to use it in accordance with these Terms.

13.4 LICENCE TO STUNNER ALERT

- (a) You grant STUNNER ALERT, during the term of these Terms and for a reasonable wind-down period thereafter, a non-exclusive, worldwide, royalty-free licence to host, store, reproduce, use, display, communicate, publish and reasonably adapt Professional Content to the extent reasonably necessary to:
 - (i) operate, maintain and improve the Platform and Platform Services;
 - (ii) create, display and promote your Professional profile and Professional Services;
 - (iii) facilitate Bookings between you and Customers;
 - (iv) display Professional Content through the Website, Platform and associated digital channels;
 - (v) promote and market the Platform, STUNNER ALERT and Professionals listed on the Platform, including through social media and other marketing channels; and
 - (vi) otherwise exercise our rights or perform our obligations under these Terms.
- (b) The licence includes the right to make reasonable formatting, cropping, resizing or technical modifications necessary to display or use Professional Content for those purposes, provided that we do not materially alter the substance of your Professional Content in a misleading manner.
- (c) You authorise us to permit our Personnel, hosting providers, technology providers, marketing providers, social media platforms and other service providers to use Professional Content to the extent reasonably necessary to carry out the purposes described above.
- (d) You may remove or update Professional Content through the Platform where that functionality is available. Removal of Professional Content does not require STUNNER ALERT to immediately remove copies retained in backups, archives or systems where

continued retention is reasonably necessary for legal, security, record-keeping or technical purposes.

- (e) STUNNER ALERT may remove, restrict or refuse to display Professional Content where we reasonably believe that it breaches these Terms, infringes another person's rights, is unlawful, misleading or inappropriate, creates a material Platform or safety risk or is otherwise reasonably necessary to protect the Platform, Customers or STUNNER ALERT.

13.5 YOUR DATA

- (a) You retain any rights you have in information you provide through the Platform (User Data).
- (b) You grant us and our service providers a non-exclusive, royalty-free licence to collect, use, reproduce, process, store and disclose User Data as reasonably necessary to operate and secure the Platform, verify eligibility, administer Accounts, profiles, Bookings, communications, payments, complaints and safety or enforcement matters, comply with law, and exercise our rights or perform our obligations under these Terms.
- (c) You warrant that you are entitled to provide User Data to us and to authorise us to use it in accordance with these Terms.
- (d) Our collection, use, disclosure, storage and handling of personal information is further described in our Privacy Policy. Nothing in this section permits us to handle personal information in a manner inconsistent with our Privacy Policy or applicable law.

14 THIRD PARTY CONTENT AND SERVICES

14.1 THIRD PARTY CONTENT

- (a) The Platform may incorporate, display or make available information, materials, links, content or functionality supplied or made available by third parties (Third Party Content).
- (b) Third Party Content remains owned by, or licensed to, the relevant third party. Nothing in these Terms transfers any Intellectual Property Rights in Third Party Content to you or STUNNER ALERT.
- (c) Your use of Third Party Content may be subject to licence terms, attribution requirements, notices or other restrictions imposed by the relevant third-party provider. Where those requirements apply directly to you and are reasonably made available through the Platform, you must comply with them.
- (d) You must not remove, obscure or alter any attribution, copyright notice, trade mark, source acknowledgement, licence notice or other proprietary notice accompanying Third Party Content.
- (e) Any reference to, attribution of or identification of a third-party provider does not of itself mean that the third party endorses, sponsors, approves or is affiliated with STUNNER ALERT, you, your Professional Services or the Platform.
- (f) STUNNER ALERT does not adopt or assume responsibility for representations made by a third party merely because Third Party Content is accessible through the Platform, subject to any responsibility that cannot lawfully be excluded.

14.2 THIRD PARTY SERVICES

- (a) We may rely on Stripe and other third-party payment, hosting, database, communications and technology providers, whose services may be subject to separate terms and may experience changes, outages or failures outside our reasonable control.
- (b) Nothing in this section excludes, restricts or modifies STUNNER ALERT's responsibility for its own acts or omissions or any right, remedy or other protection that cannot lawfully be excluded, restricted or modified.

15 CONFIDENTIALITY

- (a) Each party must keep confidential and must not use or disclose any Confidential Information of the other party except as permitted by these Terms.

- (b) Information made available to you through the Platform concerning a Customer or a Booking, including a Customer's contact details, service address, access information, communications and other non-public information, must be treated as confidential and used only to the extent reasonably necessary to manage or perform the relevant Booking, comply with applicable law or otherwise as expressly authorised by the Customer or STUNNER ALERT.
- (c) A party may use or disclose Confidential Information:
 - (i) to the extent reasonably necessary to exercise its rights or perform its obligations under these Terms;
 - (ii) to its Personnel, professional advisers and service providers who reasonably need the information for those purposes and are subject to appropriate confidentiality obligations;
 - (iii) with the prior consent of the person entitled to the confidentiality of the information; or
 - (iv) where required by applicable law, a court or a government or regulatory authority.
- (d) You must not use Customer contact details, service addresses, booking information or other information obtained through the Platform to solicit Customers, circumvent the Platform or Marketplace Facilitation Fee, conduct unrelated marketing or for any purpose unrelated to the relevant Booking or Professional Services, except where the Customer has separately consented and the use is otherwise permitted by applicable law.
- (e) Each party must take reasonable steps to protect Confidential Information in its possession or control from unauthorised access, use, disclosure, loss or interference.
- (f) If you become aware of any actual or suspected unauthorised access to, use, loss or disclosure of Customer information or STUNNER ALERT's Confidential Information, you must promptly notify STUNNER ALERT and take reasonable steps within your control to contain and address the incident.
- (g) Each party's confidentiality obligations continue for five years after the Account is closed or these Terms are terminated, except that obligations relating to trade secrets and personal information continue for so long as that information remains protected as a trade secret or under applicable law.

16 PRIVACY

- (a) STUNNER ALERT handles personal information under its Privacy Policy and applicable law.
- (b) Information reasonably necessary for onboarding, eligibility and payments may include ABN and business details, government-issued photo identification and an ID selfie, qualifications, licences, hygiene certificates, insurance and Certificates of Currency, Professional profile and Booking information, and payment information processed by Stripe or another Payment Provider.
- (c) You must use Customer personal information only as reasonably necessary for the relevant Booking or Professional Services or as otherwise authorised by the Customer or law, protect it against unauthorised access, use, disclosure, alteration, loss or interference, disclose it only where necessary and lawful (including to compliant delegates), avoid unrelated marketing or solicitation, retain it only as lawfully necessary, and promptly report any actual or suspected material privacy incident to STUNNER ALERT.
- (d) Our Privacy Policy is available at [\[Privacy Policy URL\]](#).

17 LIABILITY

17.1 WARRANTIES AND LIMITATIONS

- (a) STUNNER ALERT will provide the Platform Services with due care and skill and in accordance with any guarantee, right or other obligation that cannot lawfully be excluded, restricted or modified.
- (b) You acknowledge and agree that:

- (i) the Platform may from time to time contain errors, defects or interruptions or be temporarily unavailable;
 - (ii) Bookings, communications or payment functionality may be affected by technical issues, third-party services, payment providers, telecommunications services or other matters outside STUNNER ALERT's reasonable control;
 - (iii) STUNNER ALERT does not guarantee that you will receive any minimum number, frequency or value of Bookings, enquiries, Customers or earnings through the Platform;
 - (iv) STUNNER ALERT does not guarantee that a Customer will proceed with, attend, pay for or otherwise perform their obligations under a Service Contract;
 - (v) STUNNER ALERT does not guarantee the identity, conduct, suitability, reliability or behaviour of a Customer merely because that Customer uses the Platform; and
 - (vi) STUNNER ALERT does not guarantee any particular commercial, financial, reputational or business outcome arising from your use of the Platform.
- (c) Where you notify us of a material technical issue affecting the Platform Services, we will take reasonable steps to investigate the issue and, where reasonably practicable and appropriate, address the issue without limiting any other remedy available under applicable law.
 - (d) To the maximum extent permitted by law, all express or implied representations, warranties and guarantees that are not expressly set out in these Terms are excluded.

17.2 PROFESSIONAL SERVICES AND SERVICE CONTRACTS

- (a) The allocation of responsibility for Professional Services and Service Contracts is set out in Your Role as an Independent Professional and Service Contract with the Customer.
- (b) Without limiting the controlling sections referenced above, you remain responsible for compliance with each Service Contract and applicable law, and for Customer complaints, claims, refunds and remedies arising from Professional Services.
- (c) Nothing in these Terms makes STUNNER ALERT responsible for a breach of a Service Contract by you or a Customer merely because STUNNER ALERT introduced the parties, facilitated the Booking, provided communication functionality or facilitated payment.

17.3 AUSTRALIAN CONSUMER LAW AND NON-EXCLUDABLE RIGHTS

- (a) Nothing in these Terms excludes, restricts or modifies any consumer guarantee, right, remedy or other protection under the Australian Consumer Law or any other applicable law that cannot lawfully be excluded, restricted or modified.
- (b) Where a guarantee, right or remedy applies to the Platform Services and cannot lawfully be excluded, STUNNER ALERT's liability will be determined in accordance with the applicable law.
- (c) Nothing in these Terms limits any obligation you owe to a Customer under the Australian Consumer Law or other applicable law in relation to the Professional Services.

17.4 LIMITATION OF LIABILITY

- (a) Subject to any liability that cannot lawfully be excluded or limited, STUNNER ALERT is not liable for loss or damage to the extent it is caused or contributed to by:
 - (i) incomplete, inaccurate, out-of-date, false or misleading information provided by you;
 - (ii) your breach of these Terms, a Service Contract or applicable law;
 - (iii) your Professional Services or any act or omission in connection with their performance;
 - (iv) an act or omission of your Personnel or another person you engage in connection with the Professional Services;

- (v) your failure to maintain a required qualification, licence, approval, registration, insurance policy, equipment or other eligibility requirement;
 - (vi) your failure to attend, perform or properly complete a Booking;
 - (vii) your use of the Platform for an unlawful, unauthorised or materially improper purpose;
 - (viii) your failure to maintain the security of your Account where that failure caused or contributed to the loss;
 - (ix) a dispute, cancellation, non-payment, chargeback or other conduct of a Customer arising from the Service Contract or Professional Services, except to the extent the loss was caused by STUNNER ALERT's own breach of these Terms or failure to exercise reasonable care;
 - (x) an act, omission, outage, delay, error or failure of Stripe or another third-party service provider that is outside STUNNER ALERT's reasonable control, except to the extent the loss resulted from STUNNER ALERT's failure to exercise reasonable care in relation to matters within its control; or
 - (xi) circumstances otherwise outside STUNNER ALERT's reasonable control.
- (b) Nothing in this section excludes or limits liability to the extent caused by STUNNER ALERT's fraud, wilful misconduct, negligence, breach of these Terms or any liability that cannot lawfully be excluded or limited.

17.5 CONSEQUENTIAL LOSS

- (a) Subject to any liability that cannot lawfully be excluded or limited, neither party is liable to the other for indirect, incidental, special or consequential loss arising out of or in connection with these Terms, the Platform or Platform Services.
- (b) Loss of profit, revenue, anticipated savings, business opportunity, goodwill or reputation is excluded under this section only to the extent that the relevant loss is properly characterised as indirect or consequential in the circumstances.
- (c) This exclusion does not apply to:
 - (i) fraud or wilful misconduct;
 - (ii) personal injury or death;
 - (iii) loss of or damage to tangible property;
 - (iv) a liability arising under the indemnity below to the extent it relates to a third-party claim; or
 - (v) any liability that cannot lawfully be excluded or limited.

17.6 PROFESSIONAL INDEMNITY

- (a) To the extent permitted by law, each party (Indemnifying Party) indemnifies the other party and its Personnel against loss, liability, damage, third-party claim or reasonable external cost suffered or incurred to the extent caused by the Indemnifying Party's breach of these Terms, negligence, fraud or wilful misconduct; however, the Professional's indemnity additionally applies, subject to the limitations below, to loss caused by:
 - (i) your material breach of a Service Contract;
 - (ii) your negligent, unlawful, fraudulent or wilfully wrongful act or omission;
 - (iii) the provision, non-provision, performance or outcome of your Professional Services;
 - (iv) personal injury, death or property damage caused by you, your Personnel or the Professional Services;
 - (v) a claim by a Customer or other third party arising from your Professional Services, except to the extent the claim concerns STUNNER ALERT's own Platform Services or conduct;

- (vi) your failure to hold or maintain a qualification, licence, registration, approval or insurance required for the Professional Services;
 - (vii) Professional Content or other material supplied by you infringing another person's Intellectual Property Rights, privacy rights, confidentiality obligations or other rights; or
 - (viii) an act or omission of your Personnel or another person you engage in connection with the Professional Services.
- (b) Your liability under this indemnity is reduced to the extent that the relevant loss, liability, damage, claim or cost was caused or contributed to by STUNNER ALERT's breach of these Terms, negligence, fraud or wilful misconduct.
 - (c) STUNNER ALERT must take reasonable steps to mitigate any loss for which it seeks indemnification and must not recover more than once in respect of the same loss.
 - (d) Neither party controls the defence or settles a third-party claim for which it seeks indemnification without promptly notifying the other party, allowing the Indemnifying Party to control the defence with reasonably acceptable counsel and obtaining the other party's prior written consent to any settlement that admits fault or imposes liability or non-monetary obligations on that party; nothing in this indemnity requires either party to indemnify the other for liability that cannot lawfully be transferred.

18 **TERMINATION**

18.1 **TERMINATION ON NOTICE**

- (a) Either party may terminate these Terms without cause on at least 14 days' written notice; you may give notice through the Platform or using the Website contact details, and STUNNER ALERT may give notice under the Notices section. During the notice period, you must:
 - (i) manage, complete or properly cancel any confirmed Booking in accordance with these Terms and the applicable Service Contract;
 - (ii) deal with any refund, complaint, claim, payment dispute or other outstanding obligation arising from your Professional Services;
 - (iii) provide any information reasonably required to complete, reconcile or adjust payments relating to existing Bookings; and
 - (iv) cease accepting new Bookings that are scheduled to occur after the termination date unless otherwise agreed with STUNNER ALERT.

Commented [A14]: Termination & Deactivation Rights

Either STUNNER ALERT or the Professional may terminate without cause on at least 14 days' written notice, with existing Bookings and outstanding payment, refund, complaint and other obligations continuing to be dealt with as required. STUNNER ALERT may immediately restrict, suspend or terminate for serious matters including fraud, unlawful conduct, harassment, serious hygiene or infection-control failures, immediate safety risks, intentional circumvention, loss of required qualifications/licences/insurance and other material Platform-integrity risks. Accrued Marketplace Facilitation Fees, cancellation amounts, refunds, chargebacks, payouts and other existing liabilities survive termination as applicable.

18.2 **SUSPENSION OR TERMINATION BY US**

- (a) A termination on notice remains subject to the Effect of Suspension or Termination section.
- (b) STUNNER ALERT may also take reasonable and proportionate action to restrict or suspend your Account, remove or restrict your Professional profile or listings, prevent you from accepting new Bookings or terminate these Terms where we reasonably believe that:
 - (i) you materially breach these Terms and, where the breach is capable of remedy, fail to remedy it within a reasonable period after being notified;
 - (ii) your ABN, qualification, licence, registration, approval, hygiene certificate, insurance policy or other eligibility requirement required for your Professional Services expires, is cancelled, suspended or otherwise ceases to be valid;
 - (iii) information or evidence you provide concerning your identity, business, qualifications, experience, insurance, Professional Services, pricing, availability or eligibility is materially inaccurate, incomplete, false or misleading;
 - (iv) you engage in fraud, unlawful conduct, harassment, threatening, abusive, discriminatory, sexually inappropriate or other serious misconduct through or in connection with the Platform or Professional Services;
 - (v) you materially fail to comply with applicable hygiene, infection-control, health, safety or professional requirements;

Commented [A15]: Penalties

Addressed with the administrative fee drafted as a compensatory amount rather than an unlawful penalty. Intentional or material circumvention is expressly treated as a serious breach and may result in immediate restriction, suspension or deactivation. The Professional remains liable for the Marketplace Facilitation Fee that would otherwise have been payable and must reimburse reasonable, documented administrative costs actually incurred by STUNNER ALERT, capped at the lesser of those costs and \$100 per circumvention event. The clause expressly states that this reimbursement is compensatory and is not intended to operate as an unlawful penalty.

- (vi) we receive a serious safety complaint or reasonably consider that your continued access to the Platform creates a material safety risk to Customers or other persons;
 - (vii) you repeatedly cancel confirmed Bookings, fail to attend Bookings, create avoidable double bookings or otherwise demonstrate a material pattern of failing to perform obligations associated with confirmed Bookings;
 - (viii) we receive repeated or serious complaints concerning your conduct or Professional Services that reasonably indicate a material safety, legal, regulatory or Platform-integrity risk;
 - (ix) you misuse the Platform or use Customer information for an unauthorised purpose;
 - (x) you intentionally circumvent or attempt to circumvent the Platform's booking or payment arrangements or any Marketplace Facilitation Fee or other amount payable to STUNNER ALERT under these Terms;
 - (xi) you fail to maintain a valid Stripe or other required payment account, or a payment, verification or compliance issue materially prevents payments from being processed through the Platform;
 - (xii) your use of the Platform creates or is reasonably likely to create a material security, legal, regulatory, payment or fraud risk;
 - (xiii) your Professional Content or conduct infringes or is reasonably likely to infringe the Intellectual Property Rights, privacy rights or other rights of another person;
 - (xiv) we are required to take the action by applicable law, a court, a government or regulatory authority or a requirement of a Payment Provider that we are reasonably required to comply with; or
 - (xv) the action is otherwise reasonably necessary and proportionate to protect the Platform, Customers, STUNNER ALERT, third-party providers or other users from a material risk connected with legitimate Platform-integrity, safety, legal or security interests.
- (c) Where reasonably practicable, we will use a less restrictive measure, such as requesting updated information, restricting a listing or suspending new Bookings, where that measure is sufficient to address the relevant issue.
- (d) Where reasonably practicable, we will give you prior notice of a restriction, suspension or termination for cause, the general reason for the action and, where the issue is capable of remedy, a reasonable opportunity to remedy it.
- (e) We may restrict, suspend or terminate your Account immediately and without prior notice or a cure period where we reasonably consider immediate action necessary because of:
- (i) fraud or deliberate material misrepresentation;
 - (ii) serious unlawful conduct;
 - (iii) an immediate or serious health or safety risk;
 - (iv) violence, serious harassment, threatening conduct or other serious misconduct towards a Customer or another person;
 - (v) a serious or repeated hygiene or infection-control failure that creates a material risk;
 - (vi) intentional material circumvention of the Platform or payment arrangements;
 - (vii) loss of a qualification, licence, registration, insurance policy or other authorisation necessary to lawfully provide the relevant Professional Services;
 - (viii) serious infringement of another person's rights;
 - (ix) a material payment, security or regulatory risk;
 - (x) a court, government, regulatory or Payment Provider requirement; or

- (xi) another urgent circumstance where continued access to the Platform would create a material risk to STUNNER ALERT, Customers, other users or the integrity of the Platform.
- (f) Where reasonably practicable, we will notify you of an immediate restriction, suspension or termination and the general reasons for it after the action has been taken.
- (g) Our exercise of rights under this section regulates your access to and use of the Platform and does not make STUNNER ALERT responsible for directing or supervising your independent business or the manner in which you perform Professional Services.

18.3 EFFECT OF SUSPENSION OR TERMINATION

- (a) During a suspension or restriction, the extent of your access to the Platform, visibility of your Professional profile and ability to receive or accept new Bookings may be limited to the extent reasonably necessary having regard to the reason for the action.
- (b) On termination or closure, your Platform access and listings may end and you must not accept new Bookings; confirmed Bookings and Service Contracts, accrued rights and liabilities, Marketplace Facilitation Fees, cancellations, refunds, chargebacks, reversals, adjustments and payouts continue to be dealt with under these Terms and applicable law, and provisions concerning confidentiality, privacy, intellectual property, Professional Content, payments, liability, indemnities, disputes and accrued rights survive to the extent intended by their nature.

19 DISPUTE RESOLUTION

- (a) A party claiming that a dispute has arisen under or in connection with these Terms must not commence court proceedings relating to the dispute unless that party has complied with this section, except where the proceedings concern urgent interlocutory or injunctive relief, a statutory remedy or regulatory complaint, a payment or chargeback right that cannot lawfully be restricted, access to a tribunal or court that cannot lawfully be excluded or any other non-excludable right or remedy.
- (b) A party seeking to resolve a dispute must give the other party written notice setting out reasonable details of the dispute.
- (c) After a dispute notice is given, each party must use reasonable endeavours to resolve the dispute in good faith.
- (d) If the dispute is not resolved within 14 days after the dispute notice is given, or within another period agreed by the parties in writing, either party may commence legal proceedings in relation to the dispute.
- (e) A dispute between you and a Customer concerning the Professional Services, Professional Service Fee, performance or non-performance of a Service Contract, cancellation, refund, remedy or other obligation arising under the Service Contract is primarily a dispute between you and that Customer.
- (f) STUNNER ALERT may provide Platform functionality or reasonable administrative assistance to facilitate communications concerning a dispute between you and a Customer, but does not become a party to the Service Contract, assume responsibility for resolving the dispute or assume your obligations concerning the Professional Services by doing so.
- (g) A dispute concerning STUNNER ALERT's Platform Services, your Account, your use of the Platform, these Terms or another obligation owed directly between you and STUNNER ALERT is a dispute between you and STUNNER ALERT and is subject to this section.
- (h) Nothing in this section limits any right or remedy that cannot lawfully be excluded, restricted or modified.

20 FORCE MAJEURE

- (a) Neither party will be liable for any delay or failure to perform an obligation under these Terms, other than an accrued payment obligation, to the extent that the delay or failure is caused by an event or circumstance beyond its reasonable control (Force Majeure Event).

- (b) The affected party's obligations are suspended only to the extent and for the duration performance is prevented or delayed, and that party must promptly notify the other where practicable, mitigate the effects and resume performance as soon as reasonably practicable.
- (c) Service Contract obligations remain separately governed between you and the Customer; if an event beyond your reasonable control affects a confirmed Booking, you must promptly notify the Customer through the Platform where practicable and address cancellation, rescheduling, refunds and other consequences under the Service Contract, these Terms and applicable law.

21 NOTICES

- (a) A notice under these Terms must be in writing and sent by email to the address associated with your Account (if to you) or the notice address on the Website or Platform (if to STUNNER ALERT); each party must keep its address current.
- (b) Unless the sender knows or reasonably ought to know that delivery failed, an email notice is received 24 hours after sending or when the recipient replies, whichever occurs first; if the 24-hour time falls on a weekend or Queensland public holiday, receipt occurs on the next Queensland business day.

22 GENERAL

22.1 GOVERNING LAW AND JURISDICTION

These Terms are governed by the laws of Queensland, Australia. Each party submits to the jurisdiction of the courts of Queensland, Australia and the courts entitled to hear appeals from those courts in relation to proceedings arising out of or in connection with these Terms, but nothing in this provision excludes any mandatory right, law, jurisdiction or forum that cannot lawfully be excluded.

22.2 WAIVER

A waiver is effective only if in writing and applies only to the matter for which it is given.

22.3 SEVERANCE

If any provision of these Terms is wholly or partly void, illegal or unenforceable, that provision is severed to the extent necessary without affecting the validity or enforceability of the remaining provisions.

22.4 JOINT AND SEVERAL LIABILITY

If two or more persons are each legally bound by the same obligation or liability under these Terms, that obligation or liability binds those persons jointly and severally. This provision does not impose personal liability on an employee or other representative who acts solely on behalf of a Represented Entity and is not otherwise legally bound.

22.5 ASSIGNMENT

Neither party may assign, novate or otherwise transfer its rights or obligations under these Terms without the prior written consent of the other party, which must not be unreasonably withheld or delayed.

22.6 ENTIRE AGREEMENT

- (a) These Terms and terms expressly incorporated into them constitute the entire agreement between you and STUNNER ALERT concerning your use of the Platform as a Professional and supersede prior agreements and understandings on that subject.
- (b) These Terms do not constitute, replace or form part of a Service Contract between you and a Customer, except to the extent that these Terms regulate your use of the Platform in connection with that Service Contract.
- (c) Nothing in this section limits any representation, right or remedy that cannot lawfully be excluded or restricted.

22.7 INTERPRETATION

Unless the context requires otherwise, singular includes plural and vice versa, references to dollars are to Australian dollars, a person includes any legal entity and its successors and permitted assigns, headings do not affect interpretation, 'including' is not limiting, and no provision is construed against a party merely because it prepared it.

23 DEFINITIONS

Term	Definition
Account	means a Professional's account on the Platform.
Admin Fee	means any reasonable administration fee disclosed to the Customer through the Platform or Customer Terms before the relevant Booking is confirmed and applicable to the administration of a cancellation, refund or Platform Credit, subject to applicable law.
Australian Consumer Law	means Schedule 2 to the <i>Competition and Consumer Act 2010</i> (Cth), as amended or replaced from time to time.
Booking	means a booking or booking request for Professional Services made through the Platform.
Confidential Information	means information of or provided by a party that is by its nature confidential, is designated by that party as confidential, or that the other party knows or ought reasonably to know is confidential, including non-public Customer, Booking, payment and commercial information, but does not include information that is or becomes public knowledge other than through a breach of confidentiality.
Customer	means a person who uses the Platform as a customer to browse or book Professional Services from a Professional.
Customer Terms	means the terms and conditions applying to a Customer's access to and use of the Platform and Bookings made through the Platform, as made available by STUNNER ALERT from time to time.
Intellectual Property Rights	means any and all present and future intellectual and industrial property rights throughout the world, whether registered or unregistered, including copyright, trade marks, designs, patents, moral rights, circuit layout rights, trade, business, company and domain names, trade secrets, know-how, confidential information and other proprietary rights, and any rights to register, renew or enforce those rights.
Marketplace Facilitation Fee	means the fee payable by the Professional to STUNNER ALERT for the Platform Services in connection with a Booking, calculated as 20% of the amount payable by the Customer for the Professional Services in connection with that Booking, plus GST where applicable, as further described in the Professional Service Fees section of these Terms.
Payment Provider	means Stripe or any replacement third-party payment provider used in connection with payments collected, processed or facilitated through the Platform.
Personnel	means, in respect of a party, its officers, employees, contractors, subcontractors and agents.
Platform	means STUNNER ALERT's online marketplace, booking and payment-facilitation platform.
Platform Content	means materials made available through the Platform that are owned or licensed by STUNNER ALERT, including software, design, functionality, text, graphics, logos, trade marks, booking functionality, presentation and other content created by or for STUNNER ALERT, but excluding Professional Content and other Third Party Content except to the extent STUNNER ALERT separately owns or licenses rights in that content.

Term	Definition
Platform Services	means STUNNER ALERT's operation of the Platform and facilitation of introductions, Bookings, communications and payments, excluding Professional Services.
Professional	means an independent business listed or applying to be listed on the Platform to offer Professional Services directly to Customers.
Professional Content	means content a Professional makes available through the Platform, including portfolio and work photographs, profile information, service descriptions, logos, text, images and videos.
Professional Services	means the beauty, hair, nail, photography, videography, event management or other services advertised, offered or supplied directly by a Professional to a Customer through or in connection with the Platform, excluding the Platform Services.
Professional Service Fee	means the amount payable by the Customer to the Professional for the Professional Services supplied under a confirmed Booking, including any GST applicable to those Professional Services, but excluding the Marketplace Facilitation Fee payable by the Professional to STUNNER ALERT.
Represented Entity	means a company, partnership, organisation or other legal entity on whose behalf a person creates or maintains an Account, uses the Platform as a Professional or accepts these Terms.
Service Contract	means the separate contract formed directly between a Professional and a Customer for the Professional Services relating to a confirmed Booking, to which STUNNER ALERT is not a party.
Third Party Content	means information, materials, links, content or functionality supplied or made available by a third party through the Platform.
Total Booking Price	means the total amount payable by the Customer in connection with a confirmed Booking, as disclosed through the Platform before confirmation, including the Professional Service Fee and any applicable GST, separately disclosed platform or booking fee, peak-time surcharge, travel fee, parking fee or other mandatory charge.